to be sealed and signed by the supplier's representative and the master or officer in charge of the bunker operation on completion of bunkering operations and retained under the ship's control until the fuel oil is substantially consumed, but in any case for a period of not less than 12 months from the time of delivery.

8.2 If a Party requires the representative sample to be analysed, it shall be done in accordance with the verification procedure set forth in appendix VI to this Annex to determine whether the fuel oil meets the requirements of this Annex.
RESOLUTION MEPC.328(76)

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accordance with the verification procedure set forth in appendix VI to this Annex to determine whether the fuel oil meets the requirements of this Annex.
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 33 -

9 Parties undertake to ensure that appropriate authorities designated by them:

.1 maintain a register of local suppliers of fuel oil;

.2 require local suppliers to provide the bunker delivery note and sample as required by this regulat ion, certified by the fuel oil supplier that the fuel oil meets the requirements of regulations 14 and 18 of this Annex;

.3 require local suppliers to retain a copy of the bunker delivery note for at least three years for inspection and verification by the port State as necessary;

.4 take action as appropriate against fuel oil suppliers that have been found to

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three years for inspection and verification by the port State as necessary;

.4 take action as appropriate against fuel oil suppliers that have been found to deliver fuel oil that does not comply with that stated on the bunker delivery note;

.5 inform the Administration of any ship receiving fuel oil found to be non-compliant with the requirements of regulation 14 or 18 of this Annex; and

.6 inform the Organization for circulation to Parties and Member States of the Organization of all cases where fuel oil suppliers have fa iled to meet the requirements specified in regulations 14 or 18 of this Annex.

10 In connection with port State inspections carried out by Parties, the Parties further undertake to:

.1 inform the Party or non-Party under whose jurisdiction a bunker delivery note was issued of cases of delivery of non-compliant fuel oil, giving all relevant

information; and

.2 ensure that remedial action as appropriate is taken to bring non-compliant

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was issued of cases of delivery of non-compliant fuel oil, giving all relevant information; and

.2 ensure that remedial action as appropriate is taken to bring non-compliant fuel oil discovered into compliance.

11 For every ship of 400 gross tonnage and above on scheduled services with frequent and regular port calls, an Administration may decide after application and consultation with affected States that compliance with paragraph 6 of this regulation may be documented in an alternative manner that gives similar certainty of compliance with regulations 14 and 18 of this Annex.

Chapter 4 Regulations on the carbon intensity of international shipping

Regulation 19
Application

1 This chapter shall apply to all ships of 400 gross tonnage and above.

2 The provisions of this chapter shall not apply to:

.1 ships solely engaged in voyages within waters subject to the sovereignty or

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2 The provisions of this chapter shall not apply to:

.1 ships solely engaged in voyages within waters subject to the sovereignty or jurisdiction of the State the flag of which the ship is entitled to fly. However, each Party should ensure, by the adoption of appropriate measures, that such ships are constructed and act in a manner consistent with the requirements of chapter 4 of this Annex, so far as is reasonable and practicable.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 34 -

.2 ships not propelled by mechanical means, and platforms including FPSOs and FSUs and drilling rigs, regardless of their propulsion.

3 Regulations 22, 23, 24 and 25 of this Annex shall not apply to ships which have non-conventional propulsion, except that regulations 22 and 24 shall apply to cruise passenger

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3 Regulations 22, 23, 24 and 25 of this Annex shall not apply to ships which have non-conventional propulsion, except that regulations 22 and 24 shall apply to cruise passenger ships having non -conventional propulsion and LNG carriers having conventional or non-conventional propulsion, delivered on or after 1 September 2019, as defined in regulation 2.2.1, and regulations 23 and 25 shall apply to cruise passenger ships having non-conventional propulsion and LNG carriers having conventional or non -conventional propulsion. Regulations 22, 23, 24, 25 and 28 shall not apply to category A ships as defined in the Polar Code.

4 Notwithstanding the provisions of paragraph 1 of this regulation, the Administration may waive the requirement for a ship of 400 gross tonnage and above to comply with regulations 22 and 24 of this Annex.

5 The provision of paragraph 4 of this regulation shall not apply to ships of 400 gross tonnage and above:

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regulations 22 and 24 of this Annex.

5 The provision of paragraph 4 of this regulation shall not apply to ships of 400 gross tonnage and above:

.1 for which the building contract is placed on or after 1 January 2017; or

.2 in the absence of a building contract, the keel of which is laid or which is at a similar stage of construction on or after 1 July 2017; or

.3 the delivery of which is on or after 1 July 2019; or

.4 in cases of a major conversion of a new or existing ship, as defined in regulation 2.2.17 of this Annex, on or after 1 Janu ary 2017, and in which regulations 5.4.2 and 5.4.3 of this Annex apply.

6 The Administration of a Party to the present Convention which allows the application of paragraph 4, or suspends, withdraws or declines the application of that paragraph, to a ship entitled to fly its flag shall forthwith communicate to the Organization for circulation to the Parties to the present Protocol particulars thereof, for their information.

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entitled to fly its flag shall forthwith communicate to the Organization for circulation to the Parties to the present Protocol particulars thereof, for their information.

Regulation 20
Goal

The goal of this chapter is to reduce the carbon intensity of international shipping, working towards the levels of ambition set out in the Initial IMO Strategy on reduction of GHG emissions from ships.

Regulation 21
Functional requirements

In order to achieve the goal set out in regulation 20 of this Annex, a ship to which this chapter applies shall comply, as applicable, with the following functional requirements to reduce its carbon intensity:
.1 the technical carbon intensity requirements in accorda nce with regulations 22, 23, 24 and 25 of this Annex; and

.2 the operational carbon intensity requirements in accordance with regulations 26, 27 and 28 of this Annex.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE

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.2 the operational carbon intensity requirements in accordance with regulations 26, 27 and 28 of this Annex.

RESOLUTION MEPC.328(76)